

SENATE BILL 171

By Massey

AN ACT to amend Tennessee Code Annotated, Title 62,
Chapter 38, relative to The Ink of Hope Act.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. This act is known and may be cited as the "The Ink of Hope Act."

SECTION 2. Tennessee Code Annotated, Section 62-38-204(e), is amended by designating the current language as subdivision (e)(1) and adding the following new subdivision (e)(2):

(2) In addition to the requirement of subdivision (e)(1), each tattoo operator or tattoo artist shall, before receiving a permit to operate a tattoo establishment or to apply a tattoo, complete up to one (1) hour of online or in-person training, at no cost to the applicant, by a nonprofit organization approved by the Tennessee human trafficking advisory council that focuses on how to recognize the signs of human trafficking, how to respond to those signs, how to refer a client to resources for victims of human trafficking, and reporting signs of human trafficking to the Tennessee Human Trafficking Resource Center Hotline.

SECTION 3. Tennessee Code Annotated, Section 62-38-204(f), is amended by deleting "local health department" and substituting "local health department and must include questions on recognizing and reporting signs of human trafficking".

SECTION 4. Tennessee Code Annotated, Section 62-38-204, is amended by adding the following as a new subsection:

() A person who holds a license under this part as of December 31, 2025, and who is renewing the license pursuant to this part shall successfully complete by

December 31, 2028, up to one (1) hour of online or in-person training, at no cost to the applicant, by a nonprofit organization approved by the Tennessee human trafficking advisory council that focuses on how to recognize the signs of human trafficking, how to respond to those signs, how to refer a client to resources for victims of human trafficking, and reporting signs of human trafficking to the Tennessee Human Trafficking Resource Center Hotline. If the person fails to complete the course by December 31, 2028, then the department shall render the license invalid until the person complies with this subsection ().

SECTION 5. Tennessee Code Annotated, Title 62, Chapter 38, Part 2, is amended by adding the following as a new section:

(a) A person who holds a license under this part, and the employer of that person, who responds to signs of human trafficking with a client, refers a client to resources for victims of human trafficking, or fails to respond or refer is not civilly or criminally liable for those actions or inactions.

(b) A person who holds a license under this part, and the employer of that person, who responds, refers, or fails to respond or refer as described in subsection (a) is not subject to any action by the department because of those actions or inactions.

SECTION 6. For the purpose of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect January 1, 2026, the public welfare requiring it.